

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Andrew Ridge	Team: Squad #08	CCRB Case #: 201700546	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 01/22/2017 6:38 PM	Location of Incident: inside of § 87(2)(b)	18 Mo. SOL 7/22/2018	Precinct: 107		
Date/Time CV Reported Mon, 01/23/2017 12:33 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/23/2017 12:33 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Asghar Mahmood	10657	942101	107 PCT
2. POM Joshua Kim	07918	960760	107 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Asghar Mahmood	Abuse: Police Officer Asghar Mahmood threatened to arrest § 87(2)(b) and § 87(2)(b)	A . Substantiated
B . POM Joshua Kim	Discourtesy: Police Officer Joshua Kim spoke discourteously to § 87(2)(b)	B . Unfounded
C . POM Asghar Mahmood	Abuse: Police Officer Asghar Mahmood threatened to arrest § 87(2)(b)	C . Unsubstantiated
D . POM Asghar Mahmood	Discourtesy: Police Officer Asghar Mahmood spoke discourteously to § 87(2)(b)	D . Unfounded

Summary of Complaint

On January 22nd, 2017, at approximately 6:38PM, Police Officer Asghar Mahmood and Police Officer Joshua Kim, both of the 107th Precinct, arrived at § 87(2)(b) in Queens in response to a 911 call made by § 87(2)(b) regarding an ongoing conflict with his landlord, § 87(2)(b). After speaking with § 87(2)(b), PO Mahmood and PO Kim went to the second floor of the house in order to interview § 87(2)(b). Near the beginning of § 87(2)(b)'s interview, PO Mahmood told § 87(2)(b) and § 87(2)(b) that if they continued to call 911, they would get arrested (**Allegation A**). While § 87(2)(b) was providing PO Mahmood and PO Kim with his account of the incident, § 87(2)(b) came partway up the stairs. In response to § 87(2)(b) coming up the stairs, PO Kim allegedly approached § 87(2)(b) and told him to “get the fuck down the stairs (**Allegation B**).” As PO Mahmood and PO Kim were preparing to leave the house, PO Mahmood allegedly told § 87(2)(b) six to seven times that he needed to leave the house and that he could be arrested (**Allegation C**). PO Mahmood allegedly used the word “fuck” multiple times throughout the incident (**Allegation D**). After the conclusion of their interview with § 87(2)(b), PO Mahmood and PO Kim left the location.

There is no video footage that captures this incident.

Mediation, Civil and Criminal Histories

- This case was suitable for mediation and it was offered to § 87(2)(b) during his initial phone statement and during his in-person interview at the CCRB (BR01, BR02). In both instances, § 87(2)(b) rejected mediation.
- The NYC Office of the Comptroller responded to a request on February 17th, 2017, indicating that no notice of claim has been filed by either § 87(2)(b) or § 87(2)(b) in regards to this incident (BR 03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) with the CCRB (BR06).
- This is the first complaint involving § 87(2)(b) with the CCRB (BR07).
- PO Kim has been a member of service for one year, and this the first CCRB complaint filed against him (BR08).
- PO Mahmood has been a member of service for 11 years, and this the first CCRB complaint filed against him (BR09).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) described the officer who told him to “get the fuck down the stairs” as an East Asian male who stood between 5’5” and 5’6” tall, weighed around 160 or 170lbs, had “high-and-right” short black hair, and black eyes (BR02). No other civilian present for the incident testified to an officer telling § 87(2)(b) to get down the stairs.

On his pedigree sheet, PO Kim indicated that he is an Asian male who stands § 87(2)(b) and has black hair and brown eyes (BR10). On his pedigree sheet, PO Mahmood, the only other officer on scene, indicated that he is an Asian male who stands § 87(2)(b), and has black hair, and brown eyes (BR11).

While both PO Kim and PO Mahmood listed their race as Asian, from his physical appearance, one can see that PO Kim is East Asian, while PO Mahmood has a much darker skin tone. During his interview at the CCRB, PO Kim testified that he told § 87(2)(b) to get down the stairs more than once. § 87(2)(g)

§ 87(2)(b) described the officer who threatened him and § 87(2)(b) with arrest all at once, separately threatened him with arrest, and who used the word “fuck” multiple times throughout the incident as a Hispanic male who was around 30 years old, stood between 5’10” and 6’ tall, weighed around 185lbs, had medium-length black hair, and who had a darker skin tone than the East Asian officer (BR02). § 87(2)(b) described the officer who threatened him and § 87(2)(b) with arrest all at once as a Hispanic male who was around 45 years old, stood 6’2”, had a bulky build, weighed at least 220lbs, and had black curly hair (BR12). § 87(2)(b) described the officer who did not threaten him and § 87(2)(b) with arrest all at once as a Chinese male in his 30s or 40s who stood 5’2”, had an average build, and who weighed around 160lbs. § 87(2)(g)

Allegation A—Abuse of Authority: Police Officer Asghar Mahmood threatened to arrest

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

On January 22nd, 2017, at approximately 5:50PM, § 87(2)(b) arrived at his home, which is a three-story house at § 87(2)(b) in Queens, after having left the house at around 11:30AM because of an altercation he had had earlier that day with his landlord, § 87(2)(b). § 87(2)(b) had been having an ongoing conflict with § 87(2)(b) because § 87(2)(b) believed that § 87(2)(b) was a criminal, and for this reason, was trying to evict him from the house. Twice while he was away from the house, § 87(2)(b) called 911 because § 87(2)(b) had pushed him, and § 87(2)(b) felt threatened by this. In a later phone call with Inv. Ridge, § 87(2)(b) specified that he again called 911 at around 5:50PM because while he had been away from the house, § 87(2)(b) had been texting him, informing § 87(2)(b) that he was sharing a photo of his ID and other personal information with police officers (BR13).

At approximately 6:38PM, § 87(2)(b) met PO Mahmood and PO Kim at the door of the house. As soon as § 87(2)(b) opened the door, one of the officers asked § 87(2)(b) where the person who had called 911 was. § 87(2)(b) attempted to explain the nature of his conflict with § 87(2)(b) to PO Mahmood and PO Kim, but as he attempted to do so, both PO Mahmood and PO Kim went inside the house, and went up to the door of the apartment on the third floor. One of the officers

knocked on the door and § 87(2)(b) who lives in this apartment, answered the door and told PO Mahmood and PO Kim that she had not called the police.

PO Mahmood and PO Kim went down to the second floor, and § 87(2)(b) told PO Mahmood and PO Kim which room on the second floor was § 87(2)(b)'s. § 87(2)(b) invited PO Mahmood and PO Kim into his room, and PO Mahmood and PO Kim began to interview him about his conflict with § 87(2)(b). At some point during this interview with § 87(2)(b) PO Mahmood told § 87(2)(b) and § 87(2)(b) that if they called the police again, that they would both go to jail. During his in-person statement at the CCRB, § 87(2)(b) testified that PO Mahmood said this while he was going up the stairs from the first floor to the second floor for the first time. In a follow up call made by Inv. Ridge, § 87(2)(b) clarified that PO Mahmood said this while he was interviewing § 87(2)(b) (BR13). § 87(2)(b) was unable to provide further context for this interaction.

§ 87(2)(b) testified as a victim in regards to this incident (BR12). § 87(2)(b) testified that he has had a long-standing conflict with § 87(2)(b) over the fact that § 87(2)(b) has not been paying his rent. On the incident date, § 87(2)(b) threatened § 87(2)(b) that he would blow up the house if § 87(2)(b) evicted him. Around 12PM, police arrived at the house in response to a complaint. § 87(2)(b) sent the police away because he believed that § 87(2)(b) had called them. Later in the day, § 87(2)(b) came to § 87(2)(b)'s room, along with PO Mahmood and PO Kim. PO Mahmood told § 87(2)(b) and § 87(2)(b) that the police more pressing jobs to attend to, and that § 87(2)(b) and § 87(2)(b) were mature and should be able to resolve their issues without calling the police. PO Mahmood added that if either § 87(2)(b) or § 87(2)(b) called the police again, the police might come and arrest both § 87(2)(b) and § 87(2)(b). § 87(2)(b) could not say exactly where § 87(2)(b) was when PO Mahmood said this. Later during the interview, PO Mahmood told § 87(2)(b) that he would need to file a complaint against § 87(2)(b) through a civil court case. § 87(2)(b) testified that while he believed both officers behaved professionally, he felt PO Mahmood should not have threatened him and § 87(2)(b) with arrest.

In a phone statement, § 87(2)(b) testified as a witness in regards to this incident (BR14). § 87(2)(b) also made a brief in-person statement in which she affirmed that the testimony that she provided during her phone statement was true (BR15). § 87(2)(b) testified that in the late afternoon or early evening on the incident date, she was in her apartment on the third floor of § 87(2)(b) in Queens when a tall white male officer knocked on her door. § 87(2)(b) also saw two or three other male police officers on the stairs whom she believed were either white or Hispanic. At the door the tall male officer apologized and told § 87(2)(b) that he had come to the wrong room. § 87(2)(b) went back inside her room and shut the door because she did not want to get involved in her housemates' conflict. § 87(2)(b) stayed inside her room for the remainder of the incident. From inside her room, § 87(2)(b) could not hear what the officers were saying. However, at one point, § 87(2)(b) overheard an officer say something along the lines of "If you call again, I'm going to arrest you both." § 87(2)(b) heard someone downstairs say that they were ready for it. § 87(2)(b) was unsure which officer made this comment about arrest.

§ 87(2)(b) a resident of § 87(2)(b) in Queens testified that although she was not present for the incident involving PO Mahmood and PO Kim, § 87(2)(b) called 911 once before the incident involving PO Mahmood and PO Kim in regards to his conflict with § 87(2)(b) (BR16).

In his testimony at the CCRB, PO Kim testified that on the incident date at approximately 6:50PM, he and PO Mahmood arrived at § 87(2)(b) in Queens in response to a call regarding harassment at that location (BR17). PO Kim and PO Mahmood did not receive any

other information about this call. PO Kim and PO Mahmood were greeted at the front door of the house by § 87(2)(b) who at first was calm and collected. As PO Mahmood and PO Kim asked him about his conflict with § 87(2)(b) § 87(2)(b) began to raise his voice. After about 15 to 20 minutes, PO Kim and PO Mahmood went upstairs to speak to § 87(2)(b) PO Kim clarified that whenever he and his partner are dealing with a dispute, they interview the disputing parties separately. PO Mahmood went into the living room on the second floor where § 87(2)(b) was, while PO Kim went to the hallway on the second floor. PO Kim could not recall § 87(2)(b) saying anything about 911 being called more than once that day. PO Kim could not recall PO Mahmood saying anything about arrest to § 87(2)(b) or § 87(2)(b) and so did not believe that PO Mahmood told § 87(2)(b) or § 87(2)(b) that he (PO Mahmood) would arrest them if they called 911 again. PO Kim testified that one might receive a summons for calling 911, but that he was not sure if someone could be arrested for this.

§ 87(2)(g)
PO Mahmood could not remember if § 87(2)(b) ever said anything about calling 911 earlier that day. PO Mahmood could not remember if he mentioned arrest to § 87(2)(b) or § 87(2)(b) at any point. PO Mahmood could not remember if he told § 87(2)(b) or § 87(2)(b) that they could be arrested for calling 911 multiple times. PO Mahmood further testified that someone cannot be arrested or receive a summons for calling 911 multiple times.

In PD v. Grossman (OATH Index 2382/00R), it was found that misconduct occurred when an officer threatened to arrest a civilian without probable cause to do so (BR19).

§ 87(2)(g)
[REDACTED]

Therefore, it is recommended that **Allegation A** be closed as **Substantiated**.

Allegation B—Discourtesy: Police Officer Joshua Kim spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that as PO Mahmood and PO Kim were interviewing § 87(2)(b) on the second floor, § 87(2)(b) came about one-fourth of the way up the stairs, and heard § 87(2)(b) tell the officers that § 87(2)(b) had threatened to blow up the house. § 87(2)(b) told officers from where he was on the stairs that this was not true. In response to this, PO Kim briskly approached § 87(2)(b) so that he was within five or so stairs of him, and told § 87(2)(b) something along the lines of “Get the fuck down the stairs.” In response, § 87(2)(b) went back down to the first floor of the house. This was the only time that PO Kim told § 87(2)(b) to go down the stairs to the first floor.

§ 87(2)(b) testified that shortly after PO Mahmood and PO Kim began to interview § 87(2)(b) § 87(2)(b) went to § 87(2)(b)'s room (BR12). § 87(2)(b) was unsure of whether or not one of the officers had told § 87(2)(b) to go to § 87(2)(b)'s room. While PO Mahmood and PO Kim were interviewing § 87(2)(b) did not attempt to interrupt. However, during the course of the interview, § 87(2)(b) could periodically hear § 87(2)(b) periodically laughing in response to what § 87(2)(b) was saying. § 87(2)(b) further testified that PO Kim had a professional demeanor, and that he did not raise his voice or use any profanity at any point.

§ 87(2)(b) testified that other than the mention of arrest that included both § 87(2)(b) and § 87(2)(b) she could not hear anything that anyone was saying from inside her apartment (BR14, BR15). § 87(2)(b) specified that she at no point heard any officer use any profanity, and that the officers were “nice” and “professional.”

PO Kim testified that § 87(2)(b) did not initially attempt to follow him and PO Mahmood up the stairs when they went to the second floor in order to speak to § 87(2)(b) (BR17). While PO Mahmood was speaking with § 87(2)(b) in the living room on the second floor, PO Kim stayed in the hallway in order to keep an eye on § 87(2)(b). On multiple occasions when PO Kim looked to see where § 87(2)(b) was, PO Kim saw that § 87(2)(b) was about halfway up the stairs between the first and second floors of the house. Sometimes in reaction to § 87(2)(b)'s account of events, § 87(2)(b) would laugh or make other heckling noises like “Ha!” Other than laughing and making these noises, § 87(2)(b) did not attempt to interrupt § 87(2)(b) as he provided his account of events to PO Mahmood. Whenever PO Kim heard § 87(2)(b) laughing and making these noises, he saw § 87(2)(b) on the stairs, and told § 87(2)(b) to go back down to the first floor. Each time PO Kim told § 87(2)(b) to get down the stairs he did so by saying something along the lines of “Sir, like I said, please stay downstairs while we interview the building owner. PO Kim did not need to raise his voice in order to tell § 87(2)(b) to get down the stairs. PO Kim could not recall using profanity to tell § 87(2)(b) to go back downstairs. PO Kim could not recall telling § 87(2)(b) to “get the fuck down the stairs.” Whenever PO Kim told § 87(2)(b) to go back downstairs, § 87(2)(b) would apologize and go back down the stairs. PO Kim could not recall how many times he told § 87(2)(b) to go back downstairs, but remembered that he did so more than once.

PO Mahmood testified that both he and PO Kim went to the living room on the second floor in order to interview § 87(2)(b) and that he and PO Kim took part in interviewing § 87(2)(b) (BR18). PO Mahmood did not know where § 87(2)(b) was while he and PO Kim were speaking with § 87(2)(b) but knew that § 87(2)(b) was not on the second floor because he did not § 87(2)(b) on the second floor while PO Mahmood and PO Kim were speaking with § 87(2)(b). PO Mahmood could not remember if he could see the stairs leading to the first floor from where he was in the living room. PO Mahmood could not remember if he could hear anything from § 87(2)(b) while PO Mahmood was speaking with § 87(2)(b). PO Mahmood could not remember if § 87(2)(b) came partway up the stairs while PO Mahmood was speaking with § 87(2)(b). PO Mahmood could not remember if PO Kim ever left the living room during the conversation with § 87(2)(b). PO Mahmood could not remember if PO Kim ever told § 87(2)(b) to get down the stairs. PO Mahmood could not remember if PO Kim ever used the word “fuck.” PO Mahmood could not remember if PO Kim ever told § 87(2)(b) “to get the fuck down the stairs.”

Patrol Guide 203-09: Public Contact—General states that members of the service must “be courteous and respectful (BR20).”

In his interview, PO Kim testified that he did tell § 87(2)(b) to return to the first floor so that PO Mahmood could obtain an uninterrupted statement from § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Unfounded**.

Allegation C—Abuse of Authority: Police Officer Asghar Mahmood threatened to arrest

§ 87(2)(b)

§ 87(2)(b) testified that a few minutes after PO Kim told him to get down the stairs, PO Mahmood and PO Kim were preparing to leave the house (BR02). At this time, § 87(2)(b) asked PO Mahmood and PO Kim how § 87(2)(b) was allowed to push him. In response to this question, PO Mahmood came partway down the stairs and told § 87(2)(b) to leave the house. PO Mahmood did not provide § 87(2)(b) with any further information as to why exactly he wanted him out of the house. § 87(2)(b) asked PO Mahmood where he should go. PO Mahmood stated that § 87(2)(b) could go to a friend's house or that he should go back to Florida, where § 87(2)(b) is from. § 87(2)(b) asked PO Mahmood how he could arrest him, and that he had no right to tell him where to go to live or work. PO Mahmood responded that he could arrest § 87(2)(b) and used the words "If I arrest you, man, you will lose your TLC license." During this conversation with § 87(2)(b) PO Mahmood told § 87(2)(b) that he could lose his TLC license four to six times, and told § 87(2)(b) that he could be arrested six to seven times. During Inv. Ridge's follow up call with § 87(2)(b) § 87(2)(b) was unable to provide any further context to these six to seven threats of arrest (BR13).

§ 87(2)(b) testified that he did not hear any conversation between PO Mahmood, PO Kim, and § 87(2)(b) before they came to his room (BR12). § 87(2)(b) further testified that § 87(2)(b) was inside § 87(2)(b)'s room during most of § 87(2)(b)'s interview with PO Mahmood and PO Kim, and that § 87(2)(b) did not speak with the officers at that time. § 87(2)(b) did not know if PO Mahmood and PO Kim spoke with § 87(2)(b) following their interview of § 87(2)(b).

§ 87(2)(b) testified that other than the mention of arrest that included both § 87(2)(b) and § 87(2)(b) she could not hear anything that anyone was saying from inside her apartment (BR14, BR15).

PO Kim testified that after hearing § 87(2)(b)'s account of events, he and PO Mahmood told § 87(2)(b) and § 87(2)(b) that they would need to resolve their issues in landlord-tenant court (BR17). Both § 87(2)(b) and § 87(2)(b) were frustrated that no immediate action could be taken. PO Kim and PO Mahmood left after informing § 87(2)(b) and § 87(2)(b) about how they could resolve their conflict. PO Kim could not recall any discussion regarding § 87(2)(b)'s TLC license taking place. PO Kim could not recall PO Mahmood making any mention of arrest to § 87(2)(b).

In PD v. Grossinan (OATH Index 2382/00R), it was found that misconduct occurred when an officer threatened to arrest a civilian without probable cause to do so (BR19).

Allegation D—Discourtesy: Police Officer Asghar Mahmood spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that PO Mahmood had a professional demeanor, and that he did not raise his voice or use any profanity at any point (BR12).

PO Kim testified that as he and PO Mahmood began to interview § 87(2)(b) his demeanor was calm and collected, but that as § 87(2)(b) began to speak more about his conflict with § 87(2)(b) he began to raise his voice and gesticulate when he was emphasizing a point (BR 17). PO Kim further testified that as PO Mahmood was interviewing § 87(2)(b) he (PO Kim) could hear that § 87(2)(b) was frustrated from the tone of his voice. PO Kim was unable to further describe the tone of § 87(2)(b)'s voice. PO Kim could not recall the conversation between PO Mahmood and § 87(2)(b) becoming an argument. PO Kim at no point heard PO Mahmood raise his voice. PO Kim could not recall PO Mahmood using any profanity throughout the course of the incident. PO Kim could not recall PO Mahmood using the word “fuck.”

Patrol Guide 203-09: Public Contact—General states that members of the service must “be courteous and respectful (BR20).”

Squad: 8

Reviewer: _____

Title/Signature Print Date